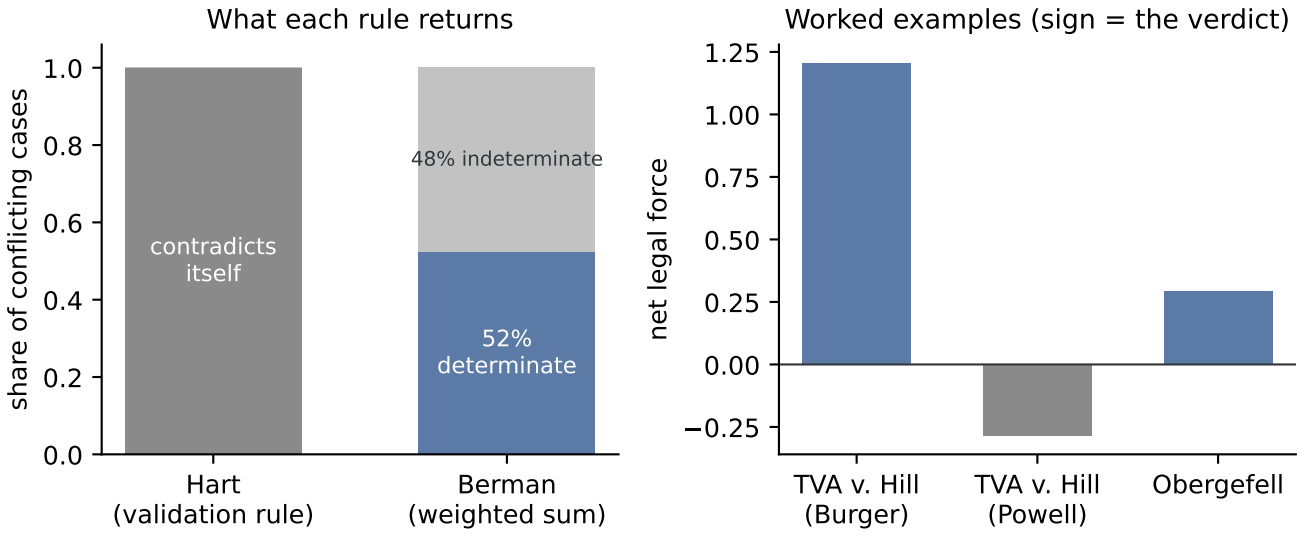
What each rule returns
share of conflicting cases
1.0
0.8
0.6
0.4
0.2
0.0
contradicts itself
48% indeterminate
52% determinate
Hart (validation rule)
Berman (weighted sum)
Worked examples (sign = the verdict)
net legal force
1.25
1.00
0.75
0.50
0.25
0.00
−0.25
TVA v. Hill (Burger)
TVA v. Hill (Powell)
Obergefell